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BAP No. SC-16-1227

UNITED STATES BANKRUPTCY APPELLATE PANEL

OF THE NINTH CIRCUIT

United States Bankruptcy Appellate Panel No. SC-16-1227
Chapter 7 Bankruptcy Case No. 16-00629-MM7

In re:

RW MERIDIAN, LLC,

Debtor,

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v.

COUNTY OF IMPERIAL TREASURER-TAX COLLECTOR,

Appellant,

v.

RONALD E. STADTMUELLER, Trustee;
RW MERIDIAN, LLC,

Appellees.

On Appeal from the United States Bankruptcy Court for the Southern District of California, Honorable Margaret M. Mann, Presiding

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APPELLANT'S OPENING BRIEF

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Jurisdictional Statement

I. JURISDICTIONAL STATEMENT

Appellant, County of Imperial Treasurer - Tax Collector ("County"), appeals from the Memorandum Decision ("Decision"), issued by the Honorable Margaret M. Mann ("Judge Mann") of the United States Bankruptcy Court for the Southern District of California ("Bankruptcy Court") on July 5, 2016, which held that a tax sale conducted by the County violated the automatic stay. (App. 13:133.)[1] The Bankruptcy Court had jurisdiction over the matter under 11 U.S.C. §§ 1334 and 157. The Decision is a final order appealable under 28 U.S.C. §158 (a)(1).

The County timely filed its Notice of Appeal on July 18, 2016, within 14 days of the entry of the Decision as prescribed by Fed. R. Bankr. P. 8002. (App. 14: 146.) No party elected to have the appeal heard by the district court, and therefore the United State Bankruptcy Appellate Panel of the Ninth Circuit ("BAP") has jurisdiction under 28 U.S.C. §158 (a)(1), (b)(1), and (c)(1).

II. STATEMENT OF ISSUES

1. Did the Bankruptcy Court err in finding that the real property became property of the estate when the petition was filed and therefore was protected by the automatic stay provisions of 11 U.S.C. §362(a)(3) and 11 U.S.C. §362(a)(4), even though the right of redemption had expired pre-petition by the terms of California Revenue and Taxation Code §3707(a)(1) and the trustee had no right to cure the tax default and redeem the property under 11 U.S.C. §108(b)?

2. Did the Bankruptcy Court err in finding that the sale occurred post-petition when California Revenue and Taxation Code §3692.1 defines the date of the sale as the date the auction begins and the petition was not filed until two days after the auction began?

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[1] Appendix references shall be in the form "App. X:YY" with the first number being the PDF number of the item and the second number being the page number in the Appendix.

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1. Did the Bankruptcy Court err in finding that the real property became property of the estate when the petition was filed and therefore was protected by the automatic stay provisions of 11 U.S.C. § 362(a)(3) and 11 U.S.C. § 362(a)(4), even though the right of redemption had expired pre-petition by the terms of California Revenue and Taxation Code § 3707(a)(1) and the property had therefore failed to cure the tax default and redeem the property during the redemption period?

2. Did the Bankruptcy Court err in finding that the sale occurred post-petition when California Revenue and Taxation Code §3692.1 defines the date of the sale as the date the auction begins and the petition was not filed until two days after the auction began?

3. Did the Bankruptcy Court err in finding that the County's action violated 11 U.S.C. §362(a)(6) as an act to collect a claim against the debtor when, under California state law, the real property tax obligation is an *in rem* obligation and not a personal obligation of the property owner?

4. Did the Bankruptcy Court err in finding that the Tax Collector's failure to stop the auction after the petition was filed was a discretionary action that violated the

3. Did the Bankruptcy Court err in finding that the County's action violated 11 U.S.C. §362(a)(6) as an act to collect a claim against the debtor when, under California state law, the real property tax obligation is an *in rem* obligation and not a personal obligation of the property owner?

4. Did the Bankruptcy Court err in finding that the Tax Collector's failure to stop the auction after the petition was filed was a discretionary action that violated the automatic stay even though the right of redemption had expired and the auction had started before the petition was filed?

III. STANDARD OF REVIEW

There are no disputed issues of fact in this case. The issues presented for review are purely questions of law, involving interpretations of the Bankruptcy Code and interpretations of state law with regard to the ultimate question of whether the automatic stay was violated. Each of those matters is recognized as a matter that is subject to *de novo* review.

A bankruptcy court's interpretation of the Bankruptcy Code is reviewed *de novo*. *Mwangi v. Wells Fargo Bank*, 764 F.3d 1169, 1173 (9th Cir. 2014) ("*Mwangi*"). A bankruptcy court's interpretation of state law is reviewed *de novo*. *In re Park at Dash Point, L.P.*, 985 F.2d 1008, 1010 (9th Cir. 1993). Specifically, the question of whether the automatic stay has been violated is recognized as a question of law which is reviewed *de novo*. *Mwangi*, 764 F.3d at 1173.

IV. STATEMENT OF THE CASE

A. Factual Background

As of February 5, 2016, RW Meridian, LLC ("Meridian") was the owner of 58+ acres of unimproved land located in the County of Imperial, California, on which the property taxes had not been paid for more than five years. (App. 1:1) In accordance with all applicable statutory requirements imposed by the California Revenue and Taxation Code ("R&T Code"), none of which are in dispute in this

Statement of the Case

A. Factual Background

As of February 5, 2016, RW Meridian, LLC ("Meridian") was the owner of 58+ acres of unimproved land located in the County of Imperial, California, on which the property taxes had not been paid for many years. (App. 1:2) In accordance with all applicable statutory requirements imposed by the California Revenue and Taxation Code ("R&T Code"), none of which are in dispute in this case, the property was scheduled for tax sale by Internet auction that was to commence on Saturday, February 6, 2016. (App. 1:1.) Pursuant to the statutory notices that were given to Meridian, and R&T Code §3707(a)(1), Meridian's right to redeem the property expired at 5:00 p.m. on Friday, February 5, 2016. (App. 1:2.) Meridian did not redeem the property, and the auction began on Saturday, February 6, 2016, as scheduled. On Monday, February 8, 2016, at approximately 4:20 p.m., Meridian filed a Chapter 7 petition. (App. 1:2.) Relying upon the fact that the right of redemption had expired prior to the petition being filed, and the BAP's decision in *In re Tracht Gut, LLC*, 503 B.R. 804 (9th Cir. BAP 2014) ("*Tracht Gut*"), *aff'd*, No. 14-60007 (9th Cir. Sept. 8, 2016),[2] the County allowed the auction to continue and accepted the high bid of $343,000. (App. 1:2-3, 11:79-80)

B. Procedural History

The County filed a Motion for Comfort Order on February 11, 2016, requesting confirmation that the completion of the auction had not violated the automatic stay because the right of redemption had expired prior to the petition being filed, and that the further act of recording the Tax Deed would not be a violation. (App. 1:1-3.) The Trustee filed a Request for Hearing and Opposition on February 24, 2016. (App. 3:8, 4:10, 5:14)

The hearing on the County's Motion for Comfort Order was set for April 7, 2016. (App. 3:8) Judge Mann issued a Tentative Ruling on April 5, 2016, which stated that the court's tentative was to deny the County's motion. (App. 7:28-30)

At the hearing, Judge Mann requested further briefing on the question of whether a

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[2] A copy of the Ninth Circuit's decision, referred to herein as *Tracht Gut I*, is included as PDF 23 in the Appendix.

B. Procedural History

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Pursuant to the statutory notices that were given to Meridian, and R&T Code §3707(a)(1), Meridian's right to redeem the property expired at 5:00 p.m. on Friday, February 5, 2016. (App. 1:2) Meridian did not redeem the property, and the auction began on Saturday, February 6, 2016, as scheduled. On Monday, February 8, 2016, at approximately 4:20 p.m., Meridian filed a Chapter 7 petition. (App. 1:2)

Relying upon the fact that the right of redemption had expired prior to the petition being filed, and the BAP's decision in *In re Tracht Gut, LLC*, 503 B.R. 804 (9th Cir. BAP 2014) ("*Tracht Gut*"), *aff'd*, No. 14-60007 (9th Cir. Sept. 8, 2016),[2] the County allowed the auction to continue and accepted the high bid of $343,000. (App. 1:2-3, 11:79-80)

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Summary of Argument

The County's position is supported by the BAP's ruling in *Tracht Gut*, which has been affirmed by the Ninth Circuit, decisions of other bankruptcy judges in California, 11 U.S.C. §108(b), and other decisions that have acknowledged that the dispositive question is whether the right of redemption existed when the petition was filed. No decision has been identified in which any court has held that though, under state law, the statutory right of redemption had expired prior to the tax-defaulted real property became property of the estate when a petition was filed after the right of redemption had expired under R&T Code §3707(a)(1). It appears that the Bankruptcy Court's ruling to that effect is the first of its kind.

The County also contends that Judge Mann erred in summarily concluding that the sale occurred post-petition without consideration of the fact that the R&T Code specifies that the date of sale is the date the auction begins. The auction was concluded after the petition was filed, but the question of when the sale occurred is a matter of state law, and California has expressly addressed the question by providing by statute that the date of the sale is the date the auction begins.

The Bankruptcy Court also erred in ruling that the continuation of the auction violated 11 U.S.C. §362(a)(6) which prohibits actions taken against the debtor to collect a claim. The auction was part of a lien-enforcement process against the real property and did not constitute an effort to collect a claim against the debtor. Under California state law, the real property tax obligation is an *in rem* obligation collectible only by enforcement of the statutory tax lien; it is not a personal obligation of the property owner and cannot be enforced as against the property owner personally.

Finally, as to the Bankruptcy Court's finding that the County's continuation of the auction was not a ministerial act because the County had discretion to stop or postpone the sale, the County submits that, because the right of redemption expired pre-petition, the property never became property of the estate and, therefore, whether the County had discretion to stop the sale or not is irrelevant.

regard to that asset, whether as part of an effort to gain possession of or control over the asset, or to enforce a lien against the asset, violates 11 U.S.C. §362(a)(3) or (a)(4).[3] See, *Mwangi*, 764 F.3d at 1179 (an asset that is not property of the estate is not, "subject to the protections of §362(a)(3)'s automatic stay provision.")

To determine the property rights of a debtor on the petition date, one must look to state law. It is well established bankruptcy law that property rights are created and defined by state law (see, *Butner v. United States*, 440 U.S. 48, 54-55 (1979) ("*Butner*")); the Bankruptcy Code does not create property rights that do not otherwise exist under state law. In affirming the BAP's decision in *Tracht Gut*, the Ninth Circuit held that, when applying bankruptcy law in the context of property tax sales, deference must be given to the state statutory regulatory system that governs real property rights. *In re Tracht Gut, LLC,* No. 14-60007 (9th Cir. Sept. 8, 2016) ("*Tracht Gut II*"). (App. 23:247)

Under R&T Code §3707(a)(1), "the right of redemption terminates at the close of business on the last business day prior to the date of sale." Under R&T Code §3692.1 the "date of sale" is "the date upon which a public auction begins." In this case, the public auction began on Saturday, February 6, 2016, and the right of redemption expired under R&T Code §3707(a)(1) at 5:00 p.m. on Friday, February 5. Meridian's petition was not filed until Monday, February 8, three days after the right of redemption had terminated under state law.

[3] In ruling that the County violated §§362(a)(4) and (6), Judge Mann stated that, "Wholly apart from whether Debtor had any remaining rights in the Property as of the petition date, the County's post-petition Sale of the Property was an action to enforce its tax lien post-petition to collect its prepetition claim against the Debtor." (App. 13:136) The suggestion that a violation of §362(a)(4) for enforcement of a lien can occur "[w]holly apart from whether Debtor had any remaining rights in the Property as of the petition date" is erroneous on its face; §362(a)(4) only prohibits the enforcement of liens as against "property of the estate." The same foundational question is presented by both §362(a)(3) and (4) – did the property become property of the estate when the petition was filed? If it did not, neither §362(a)(3) nor (4) could be violated. The fact that the tax sale did not constitute an action to collect a prepetition claim against the debtor, apart from enforcement of a lien, is discussed in Section VI.C., below.

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1. *A Bankruptcy Trustee Has No Power to Redeem Tax-Defaulted Property If the Right to Redeem Has Expired Pre-Petition*

On the day that the petition was filed, Meridian had no ability under state law to stop the sale of the property. (App. 11:82-83.) There is no provision in the Bankruptcy Code that would give the Trustee greater rights with respect to the property than those possessed by Meridian at the time the petition was filed. See, *In re Sandralee Rodgers*, 333 F.3d 64, 68-69 (2d Cir. 2003) ("*Rodgers*").

Consistent with the principle that state law is controlling as to substantive property rights, 11 U.S.C. §108(b) provides, in pertinent part:

> [I]f applicable nonbankruptcy law ... fixes a period within which the debtor or an individual protected under section 1201 or 1301 of this title may ... cure a default, or perform any other similar act, *and such period has not expired before the date of the filing of the petition*, the trustee may only file, cure, or perform, as the case may be, before the later of –
>
> (1) the end of such period, including any suspension of such period occurring on or after the commencement of the case; or
>
> (2) 60 days after the order for relief. (Emphasis added.)

1. A Bankruptcy Trustee Has No Power to Redeem Tax-Defaulted Property If the Right to Redeem Has Expired Pre-Petition

11 U.S.C. §108(b) limits the cases in which a trustee may cure a pre-petition default to situations in which a cure period established by applicable nonbankruptcy law has "not expired before the date of filing the petition." A trustee has no right to cure a default if the time to cure, as fixed by applicable nonbankruptcy law, expired before the petition was filed. 11 U.S.C. §362 and 11 U.S.C. §108 must be read in a manner that gives meaning to both. Section 108 gives the trustee an expanded period of time to cure a default or redeem property *only if the right of redemption has not expired under state law* when the petition is filed. If 11 U.S.C. §362 were read to require a creditor to take affirmative steps to cause the revival of an expired right of redemption, the limitation in §108 would have no meaning.

VIII. CONCLUSION

The state has a substantial interest in the regulation of real property sales and in the efficient collection of real property taxes. Both the Supreme Court and the Ninth Circuit have held that, in such circumstances, deference must be given to state law and bankruptcy law is not, absent clear and unambiguous language dictating the result, to be interpreted in a way that will frustrate the state's interests.

Under California law, Meridian's right of redemption expired prior to the filing of the petition and neither Meridian nor the Trustee had any ability to stop the sale or resurrect the right of redemption. Under state law, the date of the sale was the date the auction began, which was two days prior to the petition being filed. No authority has been identified that would compel the BAP to conclude, contrary to its statement in *Tracht Gut*, that despite the pre-petition lapse of the right of redemption, the property still became property of the estate subject to the protection of the automatic stay when the petition was filed.

The County respectfully submits that the Decision should be reversed and remanded to the Bankruptcy Court for entry of an order confirming that the County did not violate the automatic stay by concluding the auction, and that the recordation of the Tax Deed will not be a violation.

Respectfully, submitted,

Dated: October 7, 2016

SCHWARTZ HYDE & SULLIVAN, LLP

By: /s/ Laurel Lee Hyde
Laurel Lee Hyde
Attorneys for Appellant,
COUNTY OF IMPERIAL
TREASURER-TAX COLLECTOR

CERTIFICATION OF INTERESTED PARTIES

CERTIFICATION OF INTERESTED PARTIES

The following listed parties have a financial interest in the outcome of this case. These representations are made in order that judges of the Panel may evaluate possible disqualification or recusal.

The undersigned certifies that the following parties have an interest in the outcome of this appeal. These representations are made to enable judges of the Panel to evaluate possible disqualification or recusal:

1. American Pacific Investments, LLC – Buyer at Tax Sale
2. Iqbal Ahmed – Principal in Buyer at Tax Sale
3. Mehnaz Ahmed - Principal in Buyer at Tax Sale
4. Fraz Ahmed - Principal in Buyer at Tax Sale
5. Harris Ahmed – Principal in Buyer at Tax Sale
6. County of Imperial - Appellant
7. Ronald E. Stadtmueller – Trustee, Appellee
8. RW Meridian, LLC - Debtor
9. Ralph Bowen – Principal in Debtor
10. Nicole H. Kim – Unsecured Creditor
11. Pitzerwood, LLC – Unsecured Creditor

American Pacific Investments, LLC, Buyer at Tax Sale
Iqbal Ahmed, Principal in Buyer at Tax Sale
Mehnaz Ahmed, Principal in Buyer at Tax Sale
Fraz Ahmed, Principal in Buyer at Tax Sale
Harris Ahmed, Principal in Buyer at Tax Sale
County of Imperial, Appellant
Ronald E. Stadtmueller, Trustee, Appellee
RW Meridian, LLC, Debtor
Ralph Bowen, Principal in Debtor
Nicole H. Kim, Unsecured Creditor
Pitzerwood, LLC, Unsecured Creditor

Dated: October 7, 2016

SCHWARTZ HYDE & SULLIVAN, LLP

By: /s/ Laurel Lee Hyde

/s/ Laurel Lee Hyde

Laurel Lee Hyde
Attorneys for Appellant,
COUNTY OF IMPERIAL
TREASURER-TAX COLLECTOR

CERTIFICATION OF RELATED CASES

Appellant is aware of no related cases or appeals pending before this Panel, the Ninth Circuit Court of Appeals, or the district court.

/s/ Laurel Lee Hyde

CERTIFICATE OF COMPLIANCE
CERTIFICATE OF SERVICE

This brief complies with the type-volume limitation of Fed. R. Bankr. P. 8015(a)(7) because it contains 1,782 words, excluding the parts of the brief exempted by Fed. R. Bankr. P. 8015(g).

This brief complies with the typeface and type style requirements of Fed. R. Bankr. P. 8015(a)(5) and (6) because it has been prepared in a proportionally spaced typeface, 14-point EB Garamond, with plain roman type and italics for emphasis.

/s/ Laurel Lee Hyde

I hereby certify that on October 7, 2016, I electronically filed the APPELLANT'S OPENING BRIEF with the Clerk of the Court for the Bankruptcy Appellate Panel for the Ninth Circuit by using the CM/ECF system.

I certify that all parties of record to this appeal either are registered CM/ECF users, have registered for electronic notice, or have consented in writing to electronic service, and that service will be accomplished through the CM/ECF system.

The parties of record who are being served through the CM/ECF system are as follows:

See attached Service List

CERTIFICATE OF SERVICE

Dated: October 7, 2016

/s/ Patricia Russell
Patricia Russell

I hereby certify that on October 7, 2016, I electronically filed the foregoing document with the Clerk of the Court for the Bankruptcy Appellate Panel for the Ninth Circuit by using the CM/ECF system.

I certify that all parties of record to this appeal either are registered CM/ECF users, or have registered for electronic notice, or have consented in writing to electronic service, and that service will be accomplished through the CM/ECF system.

/s/ Laurel Lee Hyde